

24STCV06086 24STCV06086

County: los-angeles

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Case Number: 24STCV06086 Hearing Date: July 31, 2026 Dept: 509

Yoomin Kim v. General Motors, LLC

PLAINTIFF'S MOTION TO VACATE DISMISSAL

MOVING PARTY: Plaintiff Yoomin Kim

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a Song-Beverly action. Plaintiff Yoomin Kim (Plaintiff) alleges defendant General Motors, LLC (Defendant) sold a defective 2023 Chevrolet Corvette.

On February 3, 2026, Plaintiff dismissed this action without prejudice as to all defendants on all causes of action. (See 2/2/26 Request for Dismissal.)

On February 13, 2026, Defendant moved for summary judgment. Plaintiff opposed.

On June 30, 2026, the motion for summary judgment was heard and taken off calendar as MOOT. Both parties were informed of the dismissal and ordered to meet and confer in efforts to reach an agreement to set aside the dismissal. It appears no such agreement was made.

Plaintiff now moves to set aside the dismissal. Defendant did not file an opposition.

TENTATIVE RULING

Plaintiff's Motion to Set Aside Dismissal is GRANTED.

The Court orders the dismissal entered on February 2, 2026, set aside and vacated.

The motion for summary judgment is to be reset for hearing, TBD at the hearing on this motion. A CMC will also occur of that date, if needed.

Plaintiff is ordered to give notice.

DISCUSSION

Motion to Set Aside Dismissal

I. Analysis

Plaintiff moves to set aside the dismissal of this action.

On February 3, 2026, Plaintiff dismissed this action without prejudice as to all defendants on all causes of action. (See 2/2/26 Request for Dismissal.)

Plaintiff now moves to set aside the order of dismissal under Code Civil Procedure section 473(b). In support of relief, Plaintiff's counsel attests that "Plaintiff substituted Jason Ingber, Esq., of the Ingber Law Group, in as his counsel of record in place of Eleazar D. Kim, Esq., of the Downtown L.A. Law Group. The substitution is signed by Plaintiff and by Mr. Ingber, and was entered on the Court's docket on January 15, 2026." (Lee Decl. ¶4.) "[T]he Request for Dismissal (Judicial Council form CIV-110) [was] filed in this action on February 2, 2026. The form is signed by Eleazar D. Kim, Esq., requests dismissal of the "Entire action of all parties and causes of action," without prejudice, and bears the clerk's endorsement. It was signed and filed by Mr. Kim, not by Mr. Ingber, who had substituted in as Plaintiff's counsel eighteen days earlier." (Lee Decl. ¶5.) "Eleazar D. Kim and the Downtown L.A. Law Group were never reinstated as counsel of record at any time after January 15, 2026." (Lee Decl. ¶6.)

"Section 473, subdivision (b) provides for two distinct types of relief...Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of 'mistake, inadvertence, surprise, or neglect,' the court shall vacate any 'resulting default judgment or dismissal entered.'" (Leader v. Health Indus. of Am., Inc. (2001) 89 Cal.App.4th 603, 615–16.) Here, Plaintiff's counsel has provided satisfactory declarations.

Further, under the discretionary provisions of section 473(b), the court "may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Pro. § 473(b).) To obtain relief under this provision, the application for relief must be made "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding." (Ibid.)

This Court is mindful of the policy favoring relief from dismissals where there is no undue prejudice to the opposing party. (See Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC, (2015) 61 Cal. 4th 830, 839 ["The general underlying purpose of section 473(b) is to promote the determination of actions on their merits"]; see also Austin v. Los Angeles Unified Sch. Dist. (2016) 244 Cal. App. 4th 918, 929 ["[b]ecause the law favors disposing of cases on their merits, 'any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations].'"].) Importantly, there is no evidence that Defendant will suffer prejudice if the dismissal is set aside.

Accordingly, Plaintiff's Motion to Set Aside Dismissal is GRANTED. [FN 1]

Under Code of Civil Procedure, section 473(c)(1)(B), "[w]henver the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may...[d]irect that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund."

In the interest of justice, no sanctions are ordered.

IT IS SO ORDERED.

Dated: July 31, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Defendant was served via email on July 2, 2026. (See Mot. at p. 8/9.)

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.